Checklist

Before you serve the attached notice to your tenant(s), make sure you can answer **YES** to each of the following questions. If not, your notice may be invalid. If you file an application to the Landlord and Tenant Board based on an invalid notice, your application may be dismissed, and you will have to start over.

☐ **Did you name each tenant who is in possession of the rental unit?**

If there is more than one tenant in possession of the rental unit, fill in the names of all the tenants on the notice. Make sure you spell each tenant's name correctly. You must give **each tenant** a copy of this notice.

☐ **Did you fill in the complete address of the rental unit?**

Be sure that you have provided the full address – be sure to also identify the correct rental unit (for example Unit 202 or Basement) and provide the municipality and postal code.

☐ **Did you fill in the correct termination date?**

For reason 1, you must give **at least 10 days'** notice to your tenant(s).

For reasons 2 & 3:

- the termination date must be **at least 20 days** after you give the notice to the tenant(s);
- the termination date may be **at least 14 days** if a voidable N5 Notice (a *Notice to End the Tenancy for Interfering with Others, Damage or Overcrowding*) was given to the tenant(s) **AND** the conduct in this notice takes place more than 7 days but less than 6 months after the voidable N5 Notice was given.

When counting the days, do not include the date you are giving the notice to the tenant. If you are giving the notice to the tenant by mail or courier, you have to add extra days in calculating the termination date. Read the Instructions for this form to see how many days you have to add.

☐ **Did you choose the correct reason for ending the tenancy?**

This notice may be used for 3 different reasons. Check the box next to the reason(s) that apply.

☐ **Did you include enough detail to explain your reason(s)?**

Identify the behaviour, including dates, times, and facts to support the reason(s) you selected. You should be as specific as possible.

For reason 1 and 2 – the illegal act or illegal business must occur in the residential complex and be committed by or carried on by a tenant, or occupant of the rental unit. If a guest commits the illegal act or carries on the illegal business, the tenant or occupant must have allowed it.

For reason 1 – identify the illegal drug and who produced, trafficked, or possessed it for the purposes of trafficking. Illegal drugs, possession, trafficking, and production are defined in the *Controlled Drugs and Substances Act*.

For reason 2 – identify the illegal act or illegal business, and who committed or permitted it. Identify what law was broken.

For reason 3 – the rental unit must be the type of social housing described in paragraphs 1, 2, 3, or 4 of subsection 7(1) of the RTA. Identify the amount by which the tenant knowingly misrepresented their income or that of family members and show how you calculated the amount.

☐ **Did you sign and date the notice?**

If you don't, the notice may be invalid.

You should remove this checklist before you give the tenant the notice.

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Notice to End your Tenancy For Illegal Acts
or Misrepresenting Income in a Rent-Geared-to-Income Rental Unit

N6

Disponible en français

To: (Tenant's name) include all tenant names	**From: (Landlord's name)**

Address of Rental Unit:

Street Number:	Street Name:	Unit/Apt./Suite:

Municipality (City, Town, etc.):	Province: ON	Postal Code:

This is a legal notice that could lead to you being evicted from your home.

The following information is from your landlord:

I am giving you this notice because I want to end your tenancy – I want you to move out of your rental unit

by the following termination date: _____ (dd/mm/yyyy).

I can apply to the Landlord and Tenant Board immediately for an order to evict you. See Information from the LTB on Page 2.

My Reason(s) for Ending your Tenancy

I have checked the box(es) next to my reason(s) for ending your tenancy.

☐ **Reason 1**

I believe that you or someone living with you has committed an illegal act or is carrying on an illegal business at the residential complex involving:

- the production of an illegal drug,
- trafficking in an illegal drug,
- possession of an illegal drug for the purposes of trafficking.

or

I believe that you or someone living with you has permitted someone else to carry out one or more of the above illegal activities involving drugs in the residential complex.

☐ **Reason 2**

I believe that you or someone living with you has committed an illegal act or is carrying on an illegal business at the residential complex (other than an illegal act or business described in Reason 1),

or

I believe that you or someone living with you has permitted someone else to commit an illegal act or carry on an illegal business at the residential complex (other than an illegal act or business described in Reason 1).

☐ **Reason 3**

You live in a rent-geared-to-income rental unit and I believe that you have misrepresented your income or the income of family members who live in the rental unit.

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Details About the Reasons for this Notice

I have listed below the events that have led me to give you this notice, including the dates, times and specific details.

Date/Time	Details of the Events

Important Information from the Landlord and Tenant Board

The termination date

The termination date is different depending on your landlord's reason for giving you this notice and whether this is your first or second Notice to End your Tenancy in the past 6 months.

For **Reason 1**, the termination date the landlord sets out in this notice must be at least **10 days** after the landlord gives you this notice.

For **Reasons 2 and 3**:

- If this is your first Notice to End your Tenancy in the past 6 months, the termination date must be at least **20 days** after the landlord gave you this notice.
- If this is your second Notice to End your Tenancy in the past 6 months and the first notice was a N5 Notice to End your Tenancy that gave you 7 days to correct the problem, the termination date must be at least **14 days** after the landlord gives you this notice.

What if you disagree with the notice?

You do not have to move out if you disagree with what the landlord has put in this notice. However, the landlord can apply to the LTB for an order to evict you. The LTB will schedule a hearing where you can explain why you disagree.

What if you move out?

If you move out of the rental unit by the termination date, your tenancy ends on that date. However, if your landlord gave you this notice because you misrepresented your income or the income of family members living in the rental unit, you may still owe the landlord money for the amount you would have been required to pay if you had not misrepresented your income.

What if the landlord applies to the LTB?

If the landlord applies to the LTB to evict you, the LTB will schedule a hearing and send you a copy of the application and the *Notice of Hearing*. The *Notice of Hearing* sets out the date, time and location of the hearing. At the hearing, the landlord will have to prove the claims they made in this *Notice to End your Tenancy* and in the application and you can respond to the claims your landlord makes.

How to get more information

For more information about this notice or your rights, you can contact the Landlord and Tenant Board. You can reach the LTB by phone at **416-645-8080** or **1-888-332-3234**. You can visit the LTB's website at tribunalsontario.ca/ltb.

Signature

◯ Landlord ◯ Representative

First Name:	Last Name:	Phone Number:

Signature:	Date *(dd/mm/yyyy)*:

Representative Information (if applicable)

First Name:	Last Name:

LSO Number (if applicable):	Company Name (if applicable):

Mailing Address

Street Number:	Street Name:	Unit/Apt./Suite:

Municipality (City, Town, etc.):	Province:	Postal Code:

Email Address:	Phone Number:

OFFICE USE ONLY:

File Number:

Delivery Method:

◯ In Person ◯ Mail ◯ Courier ◯ Email ◯ Service Ontario Center FL: